

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: May 14, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:01 A.M.			
<u>LINE 1</u>	25CV464042	Wing On Construction Inc., a California corporation vs Dong Li, an individual et al	Motion: Withdraw as attorney Parties to appear.

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9:00 A.M.

Calendar Line # 1

Case Name Vivienne Vlaskovits vs Szilard Vlaskovits

Case No. 24CV438915

Demurrer

Defendant filed a demurrer on August 8, 2025 that was accompanied by a proof of service indicating mail service on the same day. Defendant filed an amended notice of demurrer on April 14, 2026 accompanied by a proof of service indicating mail service on the same day.

No opposition papers were filed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 1, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)). When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (*Id.*). Moving party meets its burden.

The demurrer is SUSTAINED without leave to amend. Moving party to prepare the formal Order.

Calendar Line # 5

Case Name Immigrant Rights Defense Council, LLC et al vs Shamsher Brar

Case No. 25CV457348

Motion to Compel Request for Production of Documents & Sanctions

On July 18, 2025, the plaintiff, Immigration Rights Defense Council (“Plaintiff”) filed a motion to compel response to request for production of document (“RPD”), set one and sanctions against Defendant Shamsher Brar. The motion was accompanied by a proof of service via mail delivery on that same day.

No opposition papers were filed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 1, 2026.¹ A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489). Moving party meets its burden of proof.

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¹ The Court notes that this is the second discovery motion that was unopposed in this matter. On May 5, 2026, the court heard the plaintiff’s motion to deem request for admissions admitted and sanctions. The defendant did not oppose the motion.